



Medical Privacy Issues

Overview

Privacy law is an area that is continually developing and responding to changes in the way society uses information or technology. Agencies must ensure they have procedures in place to avoid inappropriate disclosures of employees' private information. This Quick Start Guide provides a brief overview of the medical privacy issues that may arise for federal agencies. Other privacy issues that an agency may face are addressed in our [Quick Start Guide: Privacy Issues](#).

This Quick Start Guide covers the following Key Points:

1. [Americans with Disabilities Act and Rehabilitation Act](#)
2. [Genetic Information Nondiscrimination Act](#)
3. [Dr. Chris Kirkpatrick Whistleblower Protection Act of 2017](#)

Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cited source.

Americans with Disabilities Act and Rehabilitation Act

- The Americans with Disabilities Act, [42 USC 12112](#) (d)(3)(B) and 12112(d)(4)(c), requires employers to maintain information regarding the medical condition and history of individuals with disabilities in separate medical files and to treat such information as confidential except in specified situations. See [29 CFR 1630.14](#) (b)(1), (c)(1), and (d)(1). [Hadley Guide to Federal Sector Equal Employment Law and Practice: Relief for Violations](#).
- Information requested in connection with an employment decision may be disclosed to those making the decision whether to grant a reasonable accommodation. Those individuals must be informed of the limits on further disclosure of the information.
- Individuals who have access to information necessary to make a decision about whether to grant a requested accommodation may not disclose this information except under the following circumstances:
 1. Supervisors and managers who need to know may be told about necessary restrictions on the work or duties of the employee and about the necessary accommodations.
 2. First aid and safety personnel may be told if the disability might require emergency treatment.
 3. Government officials may be given information necessary to investigate the agency's compliance with the Rehabilitation Act.
 4. The information may, in certain circumstances, be disclosed to workers' compensation offices or insurance carriers.
 5. Agency EEO officials may be given the information to maintain records and evaluate and report on the agency's performance in processing reasonable accommodation requests. [Policy Guidance: Guidance on Executive Order 13164 -- Establishing Procedures to Facilitate the Provision of Reasonable Accommodation](#).
- **Hadley:** A general disclosure indicating that an employee is medically disqualified for a position does not constitute a disclosure of confidential medical information. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Medical Disclosures and Confidentiality of Medical Information](#).
- The confidentiality requirements apply even if the applicant was not hired or an employee no longer works for that employer. [Legal Rights of Persons with Disabilities -- An Analysis of Federal Law \(2nd ed.\): Chapter 11 -- Disability Discrimination in the Workplace, Part II, Medical Examinations/Inquiries, Confidentiality](#).
- An agency may require the employee to provide documentation about the disability or functional limitations from an appropriate professional such as a doctor, social worker, or rehabilitation counselor. However, the agency may request only the information that is relevant to making a decision about reasonable accommodation. Generally, the agency may not request access to a person's complete medical records because they are likely to contain information unrelated to the need for accommodation. [Policy Guidance: Guidance on Executive Order 13164 -- Establishing Procedures to Facilitate the Provision of Reasonable Accommodation](#).
- The agency violated the Rehabilitation Act when an analyst's confidential medical information was accessible and available on the agency shared drive. *Mary B. v. U.S. Agency for International Development*, [122 LRP 37103](#), EEOC No. 2021002184 (EEOC OFO 2022).
- The Social Security Administration violated the Rehabilitation Act when an attorney advisor forwarded an administrative law judge's confidential medical information, including references to her medical history and diagnosis, to a supervisor. The supervisor had no need to know the ALJ's diagnosis. Further, the supervisor improperly spoke to a coworker who was the union representative about the ALJ's medical information. *Heidi E. v. Social Security Administration*, [121 LRP 10296](#), EEOC No. 2020002437 (EEOC OFO 2021).
- The Department of Agriculture violated the Rehabilitation Act when a supervisor disclosed a program technician's confidential medical information. The supervisor acknowledged that she disclosed the technician's disability to her coworkers before her start date but said she intended to create an open and positive discussion on disabilities. Regardless of her purported positive intentions, the supervisor's action was unlawful. *Bertram K. v. Department of Agriculture, Food and Nutrition Service*, [120 LRP 26221](#), EEOC No. 2019001793 (EEOC OFO 2020).
- The VA violated the Rehabilitation Act when a supervisor who had no role in treating an employee for a potential emergency or in securing his safety was copied on an email that contained the employee's confidential medical information, including his status in a suicide prevention

program. *Augustine V. v. Department of Veterans Affairs*, [120 LRP 20792](#), EEOC No. 2019000813 (EEOC OFO 2020).

- An advanced medical support assistant could not support his claim that the agency violated his medical confidentiality. The EEOC explain that the assistant himself chose to fax his medical documents and requested that a nurse "look out" for the document coming on a shared fax machine to prevent others from seeing his information. Although he insinuated discomfort that a coworker, who would later provide him with job training, knew his HIV status, he did not dispute that it was her job to receive and store the confidential document. *Garry H. v. Department of Veterans Affairs*, [123 LRP 14702](#), EEOC No. 2022000529 (EEOC OFO 2023).
- The EEOC found that leaving the complainant's sick leave request and attached medical documentation on his hepatitis C in the break room for four days was an impermissible disclosure and constituted disability-based discrimination. The "agency's impermissible disclosure of complainant's medical condition to anyone who happened to see it in the break room constitute[d] disability-based discrimination." *Fishe v. Secretary of the Army*, [105 FEOR 35](#) (EEOC 2004).
- The EEOC found that an agency violated the Rehabilitation Act when the complainant's medical records were placed in the human resources department's adverse action files. Since these files were accessible by anyone in the HR department, they were not separate confidential medical files. *Complainant v. Department of Justice, Federal Bureau of Prisons, 0520130125*, [114 LRP 20877](#), [114 FEOR 252](#) (EEOC 2014).
- For more information, check out the [Quick Start Guide: Medical Information](#).

Genetic Information Nondiscrimination Act

- Under the Genetic Information Nondiscrimination Act, agencies must keep genetic information on separate forms and in separate medical files to comply with GINA's confidentiality requirements. Genetic information should be treated as a confidential medical record in compliance with the Americans with Disabilities Act. [42 USC Sec. 2000ff-5](#)(a).
- **Hadley:** GINA's confidentiality provisions largely parallel those of the Americans with Disabilities Act. [Hadley Guide to Federal Sector Equal Employment Law and Practice: The Genetic Information Nondiscrimination Act -- Confidentiality of Collected Information](#). [42 USC Sec. 2000ff-5](#)(a).
- Genetic information includes a person's individual genetic tests, the genetic tests of family members, along with information about family diseases or disorders. [42 USC Sec. 2000ff\(4\)\(A\)](#).
- Generally, agencies may not request or require an individual to provide genetic information, but GINA protects agencies from liability if the information is obtained inadvertently.
- Receiving genetic information in requests for medical information is inadvertent if agencies include the language at [29 CFR 1635.8 \(1\)\(i\)\(B\)](#) stating that genetic information should not be provided. Even if this language is not used, agencies can also show the information was obtained inadvertently by showing that the request was not "likely to result" in obtaining genetic information and that the physician provided "an overly broad response" to a tailored request for medical information. [29 CFR 1635.8 \(b\)\(1\)\(i\)\(C\)](#).
- Once the genetic information is obtained, agencies must protect confidentiality and may not disclose an employee's genetic information except:
 - To the employee or a family member receiving genetic services upon written request.
 - To an occupational or other health researcher for research under [45 CFR Part 46](#).
 - In response to a court order.
 - To government officials investigating GINA compliance.
 - To comply with certification provisions in the Family and Medical Leave Act.
 - Under limited conditions to a federal, state, or local public health agency when information concerns a contagious disease or disorder that presents an imminent hazard of death or life-threatening illness and the employee is notified of the disclosure. [42 USC Sec 2000ff-5\(b\)](#).
- The agency violated GINA when a polygraph examiner asked the complainant, an applicant for a border patrol agent position, questions about schizophrenia in his family. *Blake H. v. Department of Homeland Security, Customs and Border Protection*, [121 LRP 33016](#), EEOC No. 2020002429 (EEOC OFO 2021).
- A Federal Aviation Administration violated the Rehabilitation Act and the Genetic Information Nondiscrimination Act when it gave an employee's supervisor her medical history and when he left her medical information unattended. *Darlene H. v. Department of Transportation, Federal Aviation Administration*, [120 LRP 37966](#), EEOC No. 2019004438 (EEOC OFO 2020).
- For more information, check out [Quick Start Guide: Genetic Information Nondiscrimination Act -- GINA](#).

Dr. Chris Kirkpatrick Whistleblower Protection Act of 2017

- Section 103 of the [Dr. Chris Kirkpatrick Whistleblower Protection Act of 2017](#), enacted on Oct. 26, 2017, adds a 14 prohibited personnel practice: accessing the medical record of another employee or an applicant for employment as a part of, or otherwise furtherance of, any conduct described in [5 USC 2302 \(b\)\(1\) - \(13\)](#). [5 USC 2302 \(b\)\(14\)](#). Therefore, employees who have the authority to take a personnel action may not access medical records in committing or furthering any of the PPPs. This new PPP does not apply to any entity that is an element of the intelligence community.
- The [Dr. Chris Kirkpatrick Whistleblower Protection Act of 2017](#) also directs the Department of Veterans Affairs to address agency-specific gaps in its protection of VA employees, including VA employees' privacy interest in their medical records and their personal safety.
- Section 201 of the [Dr. Chris Kirkpatrick Whistleblower Protection Act of 2017](#) provides that within 180 days of enactment, the VA must develop a plan to prevent access to the medical records of its employees by VA employees who are not authorized to access the records. The plan must include:

- A detailed assessment of the VA's strategic goals for preventing unauthorized access to employees' medical records.
- A list of circumstances in which an employee who is not a health care provider or his or her assistant would be authorized to access another employee's medical records.
- Steps the VA will take to acquire new or implement existing technology to prevent an employee from accessing the medical records of another employee without a specific need to access the records.
- Steps the VA will take, including issuing new regulations, to prevent an employee from accessing another employee's medical records for purpose of retrieving demographic information that is available to the employee in another location or format.

Other Resources

- [Quick Start Guide: Privacy Issues](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- The Basics](#)
- [Quick Start Guide: Genetic Information Nondiscrimination Act -- GINA](#)
- [Quick Start Guide: Medical Information](#)

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